

Manoj Kumar Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 March 2019 · WRIT - C No. 9086 of 2019 · **Writ disposed; representation under Clause 6.5(b) to be decided.**

HEADNOTE

A consumer challenging an electricity bill as inflated was relegated to a representation before the Executive Engineer under Clause 6.5(b) of the Electricity Supply Code, 2005, to be decided in accordance with law within one month; the writ was disposed of without examining the bill on merits.

FACTUAL SUMMARY

Manoj Kumar Gupta challenged an electricity bill as inflated. Counsel for the Electricity Department submitted that the petitioner has a remedy of representation before the Executive Engineer under Clause 6.5(b) of the Electricity Supply Code, 2005. The Division Bench directed that if such a representation is made, the Executive Engineer shall consider it and pass appropriate orders in accordance with law, as far as possible within one month of presentation of a certified copy of the order with the representation. The writ was disposed of on that observation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

inflated bill — representation to Executive Engineer

HOLDING

A writ challenging an electricity bill as inflated was disposed of by relegating the consumer to the representation before the Executive Engineer under Clause 6.5(b). If that representation is made, the Executive Engineer is to consider it and pass appropriate orders in accordance with law, as far as possible within one month of presentation of a certified copy of the order together with the representation. The bill was not examined on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-representation-executive-engineer Used to relegate an inflated-bill writ to a Clause 6.5(b) representation before the Executive Engineer, with a one-month consideration direction and no merits finding on the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS INFLATED

The writ was disposed of by directing consideration of a Clause 6.5(b) representation; the bill was not examined on merits. ¶ 1